

ASCII MASTER FLOW – PANEL 1/12: Recognition to participation

IMPAIRMENT -> long-term physical, mental, intellectual or sensory

-> IN INTERACTION WITH BARRIERS: physical, attitudinal, institutional

-> RECOGNITION: 21 specified categories; benchmark certification at 40 per cent or more

-> DUTIES: statutory reservation; reasonable accommodation; accessibility standards

TEST -> substantive participation in education, employment and public life

MUST REMEMBER: Disability justice follows equality, dignity, autonomy, accessibility,...

ASCI MASTER FLOW – PANEL 2/12: Category expansion

1995 ACT -> seven recognised categories; repealed

2016 ACT -> twenty-one specified categories in the Schedule

ADDED SCOPE -> thalassaemia, haemophilia, sickle-cell disease, acid-attack victims

ALSO -> specific learning disabilities, multiple sclerosis, Parkinson's disease, dwarfism

OPEN -> the government may notify additional categories

ASCII MASTER FLOW – PANEL 3/12: Threshold and entitlement

STEP 1 -> the Act's definition covers a person with disability without any percentage

STEP 2 -> a medical authority certifies type and extent of disability

STEP 3 -> forty per cent or more is benchmark disability

STEP 4 -> benchmark status triggers reservation eligibility and concessions

LIMIT -> a person below the threshold may still face significant barriers

ASCII MASTER FLOW – PANEL 4/12: Reservation source card

DISABILITY RESERVATION -> statutory, under the 2016 Act

QUANTUM -> minimum four per cent in government establishments and posts

QUANTUM -> minimum five per cent in higher-educational institutions

CASTE RESERVATION -> constitutional, under Article 16(4)

CONSEQUENCE -> the fifty per cent ceiling jurisprudence does not govern the statutory route

ASCLII MASTER FLOW – PANEL 5/12: Accommodation test

DEFINITION -> Section 2(y): necessary and appropriate modification and adjustment

PURPOSE -> enjoyment of rights on an equal basis with others

LIMIT -> not imposing a disproportionate or undue burden

SANCTION -> denial of reasonable accommodation is discrimination under the Act

SCOPE -> physical, procedural, technological and attitudinal, not accessibility alone

ASCH MASTER FLOW – PANEL 6/12: Three models

MEDICAL MODEL -> disability located in impairment; attention to cure and rehabilitation

SOCIAL MODEL -> disadvantage located in environments, institutions and attitudes

RIGHTS MODEL -> enforceable equality, autonomy, accessibility, accommodation duties

CONVENTION -> ratified by India in 2007; the 2016 Act gives it domestic effect

RULE -> a recommendation must say which model it operates in

ASCII MASTER FLOW – PANEL 7/12: Design strategies

UNIVERSAL DESIGN -> accessibility built into the original design from inception

RETROFITTING -> accessibility added to structures built without it

EFFICIENCY -> universal design is more effective and more cost-efficient

REALITY -> retrofitting dominates because of legacy infrastructure

QUALIFICATION -> individual accommodation is still needed where a barrier survives

ASCII MASTER FLOW – PANEL 8/12: Identification platform

BEFORE -> fragmented State-level disability certificates
-> CENTRALISED APPLICATION, CERTIFICATE AND CARD PROCESS
-> NATIONAL PORTABILITY across States
-> FRICTION REMOVED: repeated re-certification
BOUNDARY -> portability is not entitlement; registration counts are dynamic

ASCII MASTER FLOW – PANEL 9/12: Accessibility framework

PILLAR 1 -> built environment: ramps, tactile paths, accessible sanitation

PILLAR 2 -> transport: accessible buses and railway coaches

PILLAR 3 -> information and communication technology: screen readers, accessible websites

VEHICLE -> carried through the implementation scheme for the 2016 Act since March 2024

STANDARDS -> harmonised guidelines; enforcement and access audits remain State and local

ASCII MASTER FLOW – PANEL 10/12: Institutions kept apart

CHIEF COMMISSIONER -> complaints, monitoring of safeguards, remedial recommendations

STATE COMMISSIONERS -> parallel functions at the State level

ACCESSIBILITY MISSION -> delivery of built, transport and technology accessibility work

DEVELOPMENT CORPORATION -> concessional credit and livelihood finance

TRUST STATUTE 1999 -> guardianship and care for four conditions only

CLOSE DISTINCTION: Impairment is not disability, accessibility is not reasonable...

ASCII MASTER FLOW – PANEL 11/12: Departmental statement card

AIM -> facilitate the empowerment of persons with disabilities

PREVALENCE -> as per Census 2011, 2.68 crore persons with disabilities

SHARE -> 2.21 per cent of the total population of the country

CATEGORIES -> twenty-one types of disabilities under the 2016 Act

NAMED -> locomotor, visual, hearing, speech and language, intellectual, multiple, dwarfism

EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Use the RPwD Act, UNCRPD status,...

ASCII MASTER FLOW – PANEL 12/12: Gap diagnosis

JOINT 1 -> reservation seats unfilled because suitable posts are not identified

JOINT 2 -> legacy infrastructure; retrofitting slow and costly; timelines extended

JOINT 3 -> private establishments; accommodation duty applies but enforcement is weaker

JOINT 4 -> benchmark threshold excludes persons below forty per cent facing real barriers

ILLUSTRATION -> an accessible coach does not secure mobility if the platform is not accessible